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UNITED STATES DISTRICT COURT
NORTHERN DISTRICT OF MISSISSIPPI

**IN THE UNITED STATES DISTRICT COURT
FOR THE NORTHERN DISTRICT OF MISSISSIPPI**

COMPLAINT WITH JURY DEMAND

MATTHEW OLIVER REARDON

Plaintiff

3:22W050-SA-JMV

v.

STATE OF MISSISSIPPI;

LAFAYETTE COUNTY, MS;

LAFAYETTE COUNTY SHERIFF'S DEPT;

LAFAYETTE COUNTY CHANCERY COURT;

COMMUNICARE

JOSEPH B. EAST

DAVID O'DONNELL

SHERRY WALL

JEFF BUSBY

DR SANDY ROGERS

RACHEL ALCORN

SUSAN BEARD

JOHN DOE DEPUTIES (1-10), all in their

individual capacities and official capacities

Defendants

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**PLAINTIFF MATTHEW OLIVER REARDON, HEREAFTER SHALL BE
REFERENCED TO AS “PLAINTIFF” BRINGS THIS ACTION ALLEGING:**

PRELIMINARY STATEMENTS

- 1) Plaintiff brings this action to vindicate his First, Fourth, and Fifth Amendment rights made applicable to the States through the equal protections of the law guaranteed under the Fourteenth Amendment and further protected under 42 U.S.C § 1983, 42 U.S.C. § 1985, 42 U.S.C. § 1986, and 42 U.S.C. § 1988, which all together establish this court as having the primary jurisdiction.
- 2) The injuries primarily sustained by Plaintiff produce various causes of action, both civil and criminal, which include but not limited to: 42 USC 1983 Denial of Rights Under Color of Law, 18 USC 242, denial of due process of law under the 5th & 14th Amendments, conspiracy/collusion, fraud/misrepresentation, negligence, violations of the Patriot Act, Crimes against humanity, violations of the Whistleblower Act, violations of the false claims act (FCA), obstruction of justice, tort of outrage, intentional emotional distress, loss of consortium, over-detention under the 4th and 14th amendments.

- 3) While this complaint primarily addresses events that took place in December of 2021 through March of 2021, it is the continued immoral, unlawful and unconstitutional acts committed and repeated by Lafayette County Officials dating back to May of 2017 which go unchecked and unpunished that are attributable to the massive Civil Rights Violations and consequently the irreparable injury that the Plaintiff has incurred and suffered as a result.
- 4) The named Defendants through ways of collusion and exploitation have sought to cover up serious discrepancies and shocking criminal acts committed by way of intentionally suppressing Plaintiff utilizing methods equating to Human Trafficking and a complete deprivation of Plaintiff's substantive due process right guaranteed by the Fourteenth Amendment to Liberty and being free from extended and unnecessary Detention.
- 5) On December 6, 2021 Plaintiff discovered a "mysterious" changing of court records regarding assignment of judge in both of his filed and active matters in Lafayette County Circuit Court. Facts surrounding the matter show that this alteration of record was not some accident or mistake and that his open legal matters were intentionally manipulated, the particular records were fraudulently altered, which in turn has tainted the particular matters under contest and infesting them with prejudice and bias.
- 6) Plaintiff states that this major grievance was exacerbated to the highest levels on December 7th 2021 when the Defendants, in particular Sheriff East, devised a plan to suppress and get rid of their problem.

- 7) Defendants willfully and maliciously conspired, planned, and agreed to seek judicial commitment through full exploitation of the State of Mississippi's outdated mental health laws for an indefinite period of time, as no act of plaintiff was ever considered criminal.
- 8) The purpose was to prevent plaintiff from further questioning the matter and prevent the reporting of the matter to the public and proper authorities by knowingly and willfully hindering the due course of justice through colluded acts of conspiracy in an obnoxious attempt to cover up the serious discrepancies discovered.
- 9) Defendants sought complete suppression of the matters through force, and intimidation, and dilution of Plaintiff's discovery through applying unfair and unfitting allegations of mental illness on Plaintiff whom had primarily championed for the equal protection of the laws and from enjoying the equal rights, privileges and immunities of citizens under the laws in Lafayette County from which time and time again he had been completely deprived of.
- 10) The above-mentioned rights deprived include plaintiff's right to freedom of speech, his right to peaceful assembly; his right to petition the government for redress of his grievances; his right to be secure in his person and his home; and his right not to be enslaved nor deprived of life and liberty other than by due process of law, and his right to receive equal protections through the laws of the United States of America and the State of

Mississippi

- 11) In doing so Defendants have knowingly and willfully hindered the due course of justice by colluded acts of conspiracy attempting to cover up the serious discrepancies Plaintiff discovered stemming from the Circuit Court Clerk's office involving records being "mysteriously" changed on two currently filed and open civil matters which Reardon is the Plaintiff on.
- 12) It is this highly immoral, unlawful, and unconstitutional move made which violated a multitude of rights of the plaintiff through one of the most shocking of acts of conspiracy between Government Officials, Employees, and Private Citizens utilizing fraudulent deception and Fraudulent concealment, Exploitation, and the kidnapping and subsequent trafficking of a Private Citizen by way of massive violations of the False Claims Act and the Whistleblower Act.
- 13) Plaintiff states that the magnitude of the attacks by local government officials combined with prior acts committed and allowed to go unchecked and unscathed now chills the constitutional rights of all citizens.
- 14) That multiple named Defendants, through intentional violation of multiple rights retained, stated, and invoked rights of Plaintiff, have demonstrated an effort to publicly deceive and in doing so have violated state and federal law while acting in their official capacities under color of law further neglecting to uphold the duties of their respective offices and the oaths

they swore to uphold.

15) In so prior and through the wanton acts to be detailed out in this complaint, each defendant named above shall be considered to have waived away any and all qualified or special immunity to which they may have been entitled.

16) All citizens are guaranteed the inherent right under the First Amendment to the United States Constitution to peacefully assemble and to petition the Government for a Redress of Grievances.

17) Not only are these Federally Protected rights never to be infringed upon by the Government but Enhanced special protections under the First Amendment are additionally put in place guaranteeing freedom of the press, further ensuring that identifying members (i.e., journalists and reporters) are not hindered, targeted, or retaliated upon simply for performing the basic functions and duties of their jobs.

18) The named Defendants have grotesquely violated the First Amendment to the U.S. Constitution through hindering and obstructing the Plaintiff's Guaranteed Right to assemble peacefully and to Petition the Government for a redress of grievances both as a concerned private citizen and an identified member of the press as an independent journalist/investigative reporter.

19) In the interest of safety due to a continuation of injury sustained, plaintiff prays that this court enjoin the Defendants into a stipulated protection order regarding all matters

involving the Plaintiff, further prohibiting any employee or authorized agent of the Lafayette County Sheriff's Department from intruding upon any property of the plaintiff or plaintiff's family.

20) The actions of the defendants in this complaint will demonstrate that the State of Mississippi's Mental Health Laws are easily exploitable and unconstitutional on their present face due to being in direct violation of the Substantive Due Process Rights of a citizen. Thus, the current legislation should be struck down as Unconstitutional and overhauled to meet the standards of Federal Law that was decided in O'Connor v. Donaldson 422 U.S. 563 (1975)¹,

21) This complaint alleges multiple State Claims which coincide with the Federal violations detailed out herein; such claims are listed out and stated properly in this complaint

JURISDICTION AND VENUE

22) This action is brought under 42 U.S.C. § 1983, 42 U.S.C. § 1985, 42 U.S.C. § 1986, 42 U.S.C. § 1988 and state law to redress the deprivation under color of law of Matthew Reardon's rights as secured by the United States Constitution.

¹ O'Connor v. Donaldson was a Landmark Case on Mental Health Laws decided by the US Supreme Court in 1975. In it The United States Supreme Court ruled that a state cannot constitutionally confine a non-dangerous individual who is capable of surviving safely in freedom by themselves or with the help of willing and responsible family members

23) This Court has jurisdiction of this action under 28 U.S.C. §§ 1331 and 1367.

24) Venue is proper under 28 U.S.C. § 1391(b) and (c). On information and belief, all parties reside in the District of Mississippi, and the events giving rise to the claims asserted herein all occurred within this district.

PARTIES

25) Plaintiff MATTHEW REARDON is an individual over the age of eighteen (18) years and a resident of the United States currently residing in Mississippi.

26) Defendant STATE OF MISSISSIPPI is a “public entity” within the meaning of the ADA, 42 U.S.C. § 12131(1), and is therefore subject to Title II of the ADA, 42 U.S.C. § 12131 et seq., and its implementing regulations, 28 C.F.R. pt. 35

27) Defendant LAFAYETTE COUNTY, MISSISSIPPI is a county in North Mississippi and the residing county for Ole Miss. Lafayette County is held jointly responsible for damages occurred and named in this lawsuit.

28) Defendant LAFAYETTE COUNTY SHERIFFS DEPARTMENT is located at 711 West Jackson Avenue and houses the Lafayette County Detention Center.

29) Defendant LAFAYETTE COUNTY CHANCERY COURT is a family court in

Lafayette County Mississippi located just off of the square in Oxford, MS at 300 North Lamar Blvd

30) Defendant COMMUNICARE is a quasi-government corporation certified through the Mississippi Department of Mental Health to offer mental health services to citizens of Lafayette County, Mississippi. Its Executive Director is Doctor Sandy Rogers and it is located at 152 Highway 7 South; Oxford, MS 38655.

31) Defendant JOSEPH B EAST is an individual over the age of eighteen (18) years and a resident of the United States. At all times relevant to this Complaint, Defendant East held the position of Lafayette County Sheriff, an elected official of Lafayette County and the State of Mississippi. At all times relevant to this Complaint, Defendant East was acting under color of state law and in the course and scope of his employment as Lafayette County Sheriff. Defendant East is sued in both his official and individual capacity.

32) Defendant DAVID O'DONNELL is an individual over the age of eighteen (18) years and a resident of the United States. At all times relevant to this Complaint, Defendant East held the position of Lafayette County Board Attorney, an appointed position of Lafayette County Mississippi which Mr. O'Donnell has held for at least the better part of a decade. At all times relevant to this Complaint, Defendant O'Donnell was acting under color of state law and in the course and scope of his employment as Lafayette County Board Attorney. Defendant O'Donnell is sued in both his official and individual capacity.

33) Defendant SHERRY WALL is an individual over the age of eighteen (18) years and a resident of the United States. At all times relevant to this Complaint, Defendant Wall held the position of Lafayette County Chancery Clerk, an elected official of Lafayette County and the State of Mississippi. At all times relevant to this Complaint, Defendant Wall was acting under color of state law and in the course and scope of her employment as Lafayette County Chancery Clerk. Defendant Wall is sued in both her official and individual capacity.

34) Defendant JEFF BUSBY is an individual over the age of eighteen (18) years and a resident of the United States. At all times relevant to this Complaint, Defendant Busby held the position of Lafayette County Circuit Clerk, an elected official of Lafayette County and the State of Mississippi. At all times relevant to this Complaint, Defendant Busby was acting under color of state law and in the course and scope of his employment as Lafayette County Circuit Clerk. Defendant Busby is sued in both his official and individual capacity.

35) Defendant DR SANDY ROGERS is the Executive Director of Communicare, a Quasi-Governmental Corporation offering mental health care. Communicare is certified by the Mississippi Department of Mental Health, and the primary listed address for Communicare is 152 Highway 7 South; Oxford, MS 38655.

36) Defendant RACHEL ALCORN is the supervisor over I.O.P at Communicare, a Quasi-Governmental Corporation offering mental health care. Communicare is certified by the Mississippi Department of Mental Health, and the primary listed address for

Communicare is 152 Highway 7 South; Oxford, MS 38655.

37) **Defendant SUSAN BEARD** is believed to be a counselor at Communicare, a Quasi-Governmental Corporation offering mental health care. Communicare is certified by the Mississippi Department of Mental Health, and the primary listed address for Communicare is 152 Highway 7 South; Oxford, MS 38655.

38) **Defendants JOHN DOE DEPUTIES 1-10** are an individual over the age of eighteen (18) years and a resident of the United States. At all times relevant to this Complaint, these Defendants held the position of Lafayette County Sheriff Deputy, dually employed/appointed as Law Enforcement Officers operating under color of law of the State of Mississippi in the course and scope of their employment. At all times relevant to this Complaint, Defendants were acting under color of state law. Defendants JOHN DOE DEPUTIES 1-10 are sued in both their official and individual capacities.

39) Mississippi's Department of Mental Health is the state agency responsible for providing mental health services to the citizens of Mississippi.

STATUTORY BACKGROUND

40) The 4th Amendment incorporated to apply to the States through the 14th Amendment protects individuals from unreasonable seizures. Because they involve unreasonable seizures, constitutional claims for false arrest against state and public officials arise under

the 4th amendment. See Carter v. Butts County, 821 F.3d 1319

- 41) "Qualified immunity 'does not offer protection if an official knew or reasonably should have known that the action, he took within his sphere of official responsibility would violate the constitutional rights of the [plaintiff].'" See Carter v. Butts County, 821 F.3d 1319
- 42) Any officer or official asserting entitlement to qualified immunity "must first prove that he was acting within the scope of his discretionary authority." Lee, 284 F.3d at 1194 (quoting Courson v. McMillian, 939 F.2d 1479, 1487 (11th Cir. 1991))
- 43) If the officer establishes that his actions were within the scope of his discretionary authority, then the burden shifts to the plaintiff to establish that the officer violated a constitutional right and that the right was clearly established at the time of the alleged violation. See Carter vs Butts, 821 F.3d at 1319; Lee vs Ferraro, 284 F.3d at 1194.
- 44) A right is clearly established if its contours are so clear that a reasonable officer would know that what he is doing violates that right. Hope v. Pelzer, 536 U.S. 730, 739 (2002) (citing Anderson v. Creighton, 483 U.S. 635, 640 (1987)).
- 45) An officer is not entitled to qualified immunity for discretionary conduct that violates a plaintiff's constitutional rights if the right at issue was clearly established when the constitutional violation occurred. Harlow v. Fitzgerald, 457 U.S. 800, 818 (1982); Loftus v. Clark-Moore, 790 F.3d 1200, 1204 (11th Cir. 2012).

46) Claims of over-detention under 42 USC 1983 can arise under the 4th amendment's right to be free from detention without probable cause or under the 14th amendment's substantive due process right to be free from continued detention after it should have been known that the detainee was entitled to release. *Cannon vs Macon County* 1 F.3d 1558

47) Proving a violation requires a plaintiff to establish that a defendant was deliberately indifferent to his due process rights. To satisfy that standard a plaintiff must show three things:

- a) That a Defendant's subjective knowledge of a risk of serious harm in the form of continued detention even after the plaintiff had a right to be released
- b) Disregard of that risk
- c) Disregard by conduct that is more than mere negligent

48) To state a claim under section 1983, a plaintiff must allege facts tending to show (1) that he has been "deprived of a right 'secured by the Constitution and the laws' of the United States," and (2) that the deprivation was caused by a person or persons acting "under color of" state law. See *Flagg Bros. v. Brooks*, 436 U.S. 149, 98 S.Ct. 1729, 1733, 56 L.Ed.2d 185 (1978).

49) Because the Fourteenth Amendment protects liberty and property interests only against invasion by the state, a section 1983 plaintiff alleging the deprivation of Due Process under

the Fourteenth Amendment must also show that state action caused his injury. See *Landry v. A-Able Bonding, Inc.*, 75 F.3d 200, 203 (5th Cir.1996).

50) Private action may be deemed state action, for purposes of section 1983, only where the challenged conduct may be “fairly attributable to the State.” **Lugar, 102 S.Ct. at 2753.**

The fair attribution test has two parts:

51) the deprivation must be caused by the exercise of some right or privilege created by the State or by a rule of conduct imposed by the state or by a person for whom the State is responsible.

52) the party charged with the deprivation must be a person who may fairly be said to be a state actor. This may be because he is a state official, because he has acted together with or has obtained significant aid from state officials, or because his conduct is otherwise chargeable to the state.” **Lugar, 102 S.Ct. at 2753-54.**

53) The state compulsion (or coercion) test holds that “a State normally can be held responsible for a private decision only when it has exercised coercive power or has provided such significant encouragement, either overt or covert, that the choice must in law be deemed to be that of the State.” **Blum v. Yaretsky, 457 U.S. 991, 102 S.Ct. 2777, 2786, 73 L.Ed.2d 534 (1982)**

54) In *O'Connor vs Donaldson*, a landmark Supreme Court Ruling on mental health law,

Donaldson's commitment was initiated by his father, who thought that his son was suffering from "delusions." After hearings before a county judge of Pinellas County, Fla., Donaldson was found to be suffering from "paranoid schizophrenia" and was committed for "care, maintenance, [422 U.S. 563, 566] and treatment" pursuant to Florida statutory provisions that have since been repealed.

55) At the time everything occurred, The Florida state law was less than clear in specifying the grounds necessary [422 U.S. 563, 567] for commitment (such as the State of Mississippi currently stands), and the record is scanty as to Donaldson's condition at the time of the judicial hearing. These matters are, however, irrelevant, for this case involves no challenge to the initial commitment, but is focused, instead, upon the nearly 15 years of confinement that followed.

56) In it the Supreme Court decided that A State cannot constitutionally confine, without more, a non-dangerous individual who is capable of surviving safely in freedom by himself or with the help of willing and responsible family members or friends, and since the jury found, upon ample evidence, that petitioner did so confine respondent, it properly concluded that petitioner had violated respondent's right to liberty. O'Connor vs Donaldson 422 US 573-576.

57) May the State fence in the harmless mentally ill solely to save its citizens from exposure to those whose ways are different? One might as well ask if the State, to avoid public unease, could incarcerate all who are physically unattractive or socially eccentric. Mere

public intolerance or animosity cannot constitutionally justify the deprivation of a person's physical liberty. See, e. g., *Cohen v. California*, 403 U.S. 15, 24 -26; *Coates v. City of* [422 U.S. 563, 576] *Cincinnati*, 402 U.S. 611, 615; *Street v. New York*, 394 U.S. 576, 592; cf. *U.S. Dept. of Agriculture v. Moreno*, 413 U.S. 528, 534.

58) A finding of "mental illness" alone cannot justify a State's locking a person up against his will and keeping him indefinitely in simple custodial confinement. Assuming that that term can be given a reasonably precise content and that the "mentally ill" can be identified with reasonable accuracy, there is still no constitutional basis for confining such persons involuntarily if they are dangerous to no one and can live safely in freedom.

59) To initiate civil commitment proceedings, any "interested person" may file an affidavit with the clerk of the state chancery court. MS Code Section 41-21-65. This affidavit must contain specific factual descriptions of the behavior of the proposed patient (or proposed respondent), and MUST be supported by observations of named witnesses. "Affidavits shall be stated in behavioral terms and shall not contain judgmental or conclusory statements."

60) Pursuant to Mississippi State Law, any person who conspires unlawfully to cause, or unlawfully causes, any person to be adjudicated in need of treatment or as incompetent or to be detained at, or admitted to, or hospitalized in a treatment facility, or any person who receives or detains any person in need of treatment, contrary to Sections 41-21-61 through 41-21-107 , or any person who maltreats any person in need of treatment, or

any person who knowingly aids, abets or assists and encourages any person in need of treatment, to be absent without permission from any treatment facility or custodian in which or by whom such person is lawfully detained, or any person who violates any provision contained in Sections 41-21-61 through 41-21-107 shall be guilty of a misdemeanor and upon conviction be fined not less than Five Hundred Dollars (\$500.00) nor more than One Thousand Dollars (\$1,000.00), or imprisoned in the county jail not exceeding one (1) year, or both.

61) Commitment Proceedings in no case should provide less guaranteed Due Process Rights than that of a Criminal Proceeding. Both should contain a trial and both must be an equal trier of fact.

62) In *Mooney v. Holohan*, 294 U.S. 103 (1935), the Court established the rule that the knowing use by a state prosecutor of perjured testimony to obtain a conviction and the deliberate suppression of evidence that would have impeached and refuted the testimony constitutes a denial of due process.

63) The Court reasoned that "a deliberate deception of court and jury by the presentation of testimony known to be perjured" is inconsistent with "the rudimentary demands of justice." *Mooney v. Holohan*, 294 U.S. 112.

64) The Court reaffirmed this principle in broader terms in *Pyle v. Kansas*, 317 U.S. 213 (1942), where it held that allegations that the prosecutor had deliberately suppressed

evidence favorable to the accused and had knowingly used perjured testimony were sufficient to charge a due process violation.

65) The Court held that the knowing use of false testimony to obtain a conviction violates due process regardless of whether the prosecutor solicited the false testimony or merely allowed it to go uncorrected when it appeared. The Court explained that the principle that a State may not knowingly use false testimony to obtain a conviction — even false testimony that goes only to the credibility of the witness — is "implicit in any concept of ordered liberty." *Napue v. Illinois*, 360 U.S. 269.

66) The Supreme Court held that it was not bound by the state court's determination that the false testimony "could not in any reasonable likelihood have affected the judgment of the jury." *Napue v. Illinois*, 360 U.S. 271. The Court conducted its own independent examination of the record and concluded that the false testimony "may have had an effect on the outcome of the trial." *Napue v. Illinois*, 360 U.S. 272.

FACTS

67) On December 3rd, 2021 Plaintiff opened a new civil case in Lafayette County Circuit Court under cause number L21-494. This case in particular involves an appeal from Lafayette County Justice Court where knowingly perjured testimony that defense exhibits contradicted was introduced at trial and went uncorrected by the prosecutor.

68) At the time of filing, Clerk Chyna Sinervo advised plaintiff that his newly filed case had been assigned to Judge Kent Smith and that the system uses a random algorithm to select the presiding judge in the interest of fairness and to avoid impropriety.

69) On that same day, December 3rd, 2021, Plaintiff received an email from Lafayette County Attorney David O'Donnell in which O'Donnell would appear to be giving a premonition warning about what was about to take place. The email, which will be attached as an Exhibit A stated in conclusion:

Finally, the clerks report that you have been verbally abusive toward them and that the behavior seems to be increasing in frequency and intensity. There is no need for behavior that disrupts court business and decorum and, if it continues, the judges of the court may pursue their options to address the behavior. I therefore believe that your use of the public computer terminal will work for everyone.

70) Defendant O'Donnell states in his email "Clerks" insinuating multiple. However, Plaintiff denies any and all allegations of this and labels this as being categorically false. Not to mention, O'Donnell failed to specify any particular occurrence in his email to reference.

71) On December 6, 2021, through information gathered, plaintiff discovered the assignment of judge on his newly filed circuit court matter had been "flipped" to reflect Judge John Kelly Luther.

72) This just so happened to be the second time in sixteen months' time, on two currently still open circuit court matters, that this same record was mysteriously altered from the initial assigned Circuit Court Judge Kent Smith to Circuit Court Judge John Kelly Luther without

any explanation given.

73) Plaintiff pressed in to ask how this could have happened and who would have been able to change it, normal questions that should be expected of any concerned citizen. Plaintiff feels he exhibited a calm, non-confrontational approach to the questions he was asking.

74) Circuit Court Clerk, Jeff Busby got highly defensive when plaintiff began asking questions and advised the other clerks to not answer any more of plaintiff's questions.

75) Busby then proceeds on to calling the Lafayette County Sheriff, Joey East to report Plaintiff's presence at Lafayette County Circuit Court

76) Busby advises plaintiff that he had not been seen anything of the such regarding records being changed prior to plaintiff's discovery, proceeding on to say he hadn't even seen it happen on plaintiff's instance.

77) After Busby advises Plaintiff of the aforementioned, plaintiff leaves the Courthouse and proceeds almost immediately to his vehicle.

78) Around the same time that Plaintiff got situated in his vehicle, Defendant East pulls up initially blocking Plaintiff from reversing. Then East parks next to plaintiff, and their conversation then ensues

79) Defendant East orders Plaintiff not to go back into Circuit Court unless he has something

to file because he was “Disrupting their business”.

80) On December 7th, 2021, Plaintiff, his spouse, and minor child attend a late day doctor’s appointment for the minor child. At approximately 5pm on December 7th, 2021 upon returning home from the Doctor Appointment, Plaintiff is taken into custody at his residence in front of his wife and child

81) Upon returning home at approximately 5pm, Lafayette County Sheriff’s Deputies pull up and proceed to informing plaintiff and his spouse that Communicare had filed an affidavit claiming Plaintiff was in need of mental health services.

82) Plaintiff would find out via phone call with Communicare on December 31st, 2021 that Lafayette County Sheriff Joey East rose to the occasion once again in passing obnoxious lies and complaints alleging constitutionally protected activity as a journalist, reporter, and credentialed member of the press to an employee of Communicare by the name of Rachel Alcorn in seeking a solution to get rid of Plaintiff.

83) Facts and motive would show this sinister act as a predisposed plan to exploit the State’s mental health laws by cutting corners, ignoring required procedure under state law, and seeking to separate a husband and father of four from his family.

84) The filed affidavit stated the following reasons Plaintiff should be involuntarily committed:

- Goes into public places recording people

- Paranoid and Delusional
- Provoking people with his minor child
- Not taking meds
- And not getting medical help

85) The affidavit did not meet the prerequisites under State Law in that it didn't list out any named witnesses to the attributable causes for action. Nonetheless in the early afternoon on December 7, 2021 the affidavit is filed in Lafayette County Chancery Court and a writ to take plaintiff into custody was immediately signed off on by Chancellor Lawrence Little.

86) Plaintiff states a combination of abominable Lies and constitutionally protected activity was fed to an employee of Communicare (Alcorn) by Defendant East whom then filed an affidavit for commitment in Lafayette County Chancery Court which was immediately signed off on by Chancellor Lawrence Little

87) Plaintiff never went into public places to invade privacy of others through "recording people". As a credentialed member of the press being an independent investigative reporter/journalist, plaintiff would accurately document his encounters through using video, or audio using an audio recorder he carries on his person. This also doubled as a way for plaintiff to protect himself from lies and untrue insinuations and character assassinations such as what transpired here.

88) Plaintiff has never once seen or heard things which would make him be “delusional” as was reported to Alcorn by East, nor has Plaintiff ever been accused or told that he was “delusional” or “paranoid”. Plaintiff stays on guard and protective due to a fundamental miscarriage of justice which occurred in 2017 which East is alleged to have had direct involvement in.

89) Plaintiff never once provoked anybody with his minor child. On one occasion Plaintiff had a mishap while flying a small aerial drone which sparked a major overreaction from Lafayette County Sheriff's Department while one of Plaintiff's minor children was with him observing. Due to the obnoxiousness and overreaction, Plaintiff submitted a Freedom of Information Act request the very next day, September 29th, 2021, asking for the body camera of Deputy Dixon and all officer reports from all law enforcement officers present.

90) Plaintiff states more than 6-months later Plaintiff's request still hasn't been fulfilled due to Defendant East claiming the incident is “Under Active Investigation” by the US Attorney's Office for the Northern District of Mississippi regarding whether or not plaintiff would be required to hold a commercial license to fly a drone for personal reasons with his minor child present.

91) Plaintiff adamantly believes at this point this is a stall tactic and this stall tactic is now hindering an independent investigation into Lafayette County Sheriff's Department and certain Deputies for gross misconduct.

92) Plaintiff is of the full impression that he was fraudulently committed on a mental writ based upon lies and constitutionally protected activity in order to suppress the reporting of fraud to not only the public, but to the proper authorities as well.

93) Plaintiff states motive for Defendant East's involvement stems from an appeal from Justice Court where East and several deputies were demonstrated to have given proven perjurious sworn testimony on stand through the evidence offered by the defense, and that this particular matter coincided with the most recent discovery of changed records regarding the assignment of judge on the newly filed matter in Circuit Court.

94) Plaintiff was sent to the Tupelo Crisis Center just up the hill from the North Mississippi State Hospital where he sat deprived of his liberty from December 9th 2021 until December 23rd 2021

95) After discharge from a two-and-a-half-week involuntary stay based upon lies and cover-up, Plaintiff immediately condemned the ruthless attack and labeled it for what it was: a fraudulent commitment coming about as a result of completely erroneous lies spewed by the sheriff, Joey East, and completely botched procedure by Communicare and its Employees.

96) On January 4, 2022, just five days after speaking with Defendant Alcorn regarding the source of the information given to her, plaintiff filed an "Affidavit of Truth" against Sheriff East in an attempt to add clarity to the events plaintiff claims the Lafayette County Sheriff

has played a part in or had direct knowledge of. This affidavit required a written rebuttal from the Sheriff on any part he disagreed with and clearly established the time frame and repercussions for failure to rebut. However, the Lafayette County Sheriff chose not to rebut the affidavit of truth in turn tacitly admitting to all claims spelled out within. (AFFIDAVIT OF TRUTH WITH PROOF OF SERVICE IS ATTACHED HERETO AS EXHIBIT B)

97) Plaintiff had to reschedule his originally scheduled appointment at Communicare on the first week of January due to scheduling error associated with his spouse just starting a new full-time job, having one vehicle between the both of them, and plaintiff having 3 minor children in his care.

98) After voicing the set of events that occurred and his complete disgust with the matter to a Communicare employee, Susan Beard, plaintiff was informed that he needed to submit any complaint in writing to the director of the Facility including any demand for preservation of evidence.

99) Early on in the afternoon on February 7th, 2022 at the conclusion of speaking with chancery court clerk Sherry Wall, Plaintiff filed and served an 8-page shocking letter with Chancery Judge Lawrence Little's chambers and Communicare's executive director Dr. Sandy Rogers. (8-PAGE FORMAL COMPLAINT ATTACHED AS EXHIBIT C)

100)

101) Two days later on, February 9th, 2022, Communicare Employee Susan Beard

proceeded to file another affidavit for commitment of plaintiff claiming Plaintiff had refused to attend a scheduled appointment. However, recorded phone calls with Communicare paint an entirely different picture

102) It is alleged that Ill-will and retaliation for filing such complaint sourced the newest affidavit for involuntary commitment which constitutes violations of the Whistleblower Act

103) On February 10th, 2022, upon returning home close to midnight from his spouse, Madelyn, being hospitalized due to pregnancy complications, Lafayette County Sheriff's Deputies light up the yard with blue lights and take Reardon once again into custody for the affidavit for commitment filed in front of his wife, Madelyn.

104) Plaintiff was held at the Lafayette County Detention Center confined to a jail cell for 24-hours a day for nearly 6-days without any rights afforded to him and then shipped 2.5 hours across the state to the East Mississippi State Hospital in Meridian MS on February 16th, 2022.

105) There plaintiff would stay deprived of his liberty and basic freedoms for the next 30-days' time.

106) All of this put Madelyn into preterm labor and she gave birth via emergency c-section on February 17, 2022 to a son just 28-weeks gestational age whom weighed 2lb 11oz; and did so without the plaintiff by her side for support and care despite multiple

attempts by plaintiff to compel Cooperation in order to see and care over his spouse and highly premature newborn child.

107) While the State of Mississippi's offered safeguards help ensure SOME, maybe even MOST receive a fair evaluation during the involuntary commitment phase, this certainly was not the case for the Plaintiff when the same county and officials by proxy wind up picking and paying who the "Special Master" is, the "Respondent's attorney", as well as the Doctor and Nurse Practitioner. This weighs the tables fully to Lafayette County's discretion and call on selecting their own preferred outcome on a matter highly contested and at the bare minimum should be required to meet a high standard and even warrant a trial by jury due to the life impacting repercussions resulting from one wrong, bad call.

108) After unfairly denying, without reason, an application to proceed in forma pauperis for a separate matter less than two months prior due to plaintiff's financial situation rendering him indigent, Defendant Wall declares on this cause that Plaintiff is Indigent and proceeds to choosing the individuals to interview plaintiff at the jail, subsequently authorizing payment to each out of the county funds. This demonstrates an indifference shown towards plaintiff's rights and unjust enrichment for Lafayette County for its prejudicial decision to selectively apply indigent status in ways that benefit its present task or goal at hand.

109) The fact that listed Defendants utilized involuntary commitment TWICE over a span of approximately two months' time aggravates the damages incurred from this claim

to include a rushed attempt to seek much needed relief through this court especially with Plaintiff being restrained of his liberties and other rights for six weeks' time and missed the birth of his child whom was born extremely premature due to the events which took place hospitalizing the plaintiff's wife.

- 110) Plaintiff's newborn child was considered a Micro-Preemie when born, faced numerous medical issues to date with more undoubtedly on the horizon. No time taken can be given back, however, a proper ruling and judgement by this court can help ensure no other potential pregnancy complications result in any more newborns being born so premature and fragile.

CLAIMS

COUNT ONE - DEPRIVATION OF RIGHTS UNDER COLOR OF LAW

Violation of the Fourth and Fourteenth Amendments - FALSE ARREST- pursuant to 42 U.S.C. §1983
Against all named parties

- 111) The Plaintiff re-alleges and incorporates by reference the above paragraphs with the same force and effect as if fully set out in specific detail herein.
- 112) Plaintiff suffered a loss of liberty, embarrassment, humiliation, pain and suffering, mental and emotional distress, among other injuries and damages.
- 113) WHEREFORE, Plaintiff seeks such compensatory and punitive damages as a jury may reward, attorneys' fees, and any such other, different, and further relief which this Court

finds he is entitled.

COUNT TWO - DEPRIVATION OF RIGHTS UNDER COLOR OF LAW

Violation of the First and Fourteenth Amendments –UNLAWFUL DETENTION- pursuant to 42 U.S.C. §1983
Against all named parties

114) The Plaintiff re-alleges and incorporates by reference the above paragraphs with the same force and effect as if fully set out in specific detail herein.

115) Plaintiff suffered a loss of liberty, embarrassment, humiliation, pain and suffering, mental and emotional distress, among other injuries and damages.

116) WHEREFORE, Plaintiff seeks such compensatory and punitive damages as a jury may reward, attorneys' fees, and any such other, different, and further relief which this Court

COUNT THREE - DEPRIVATION OF RIGHTS UNDER COLOR OF LAW

Violation of the First and Fourteenth Amendments – FREEDOM OF SPEECH- pursuant to 42 U.S.C. §1983
Against all named parties

117) The Plaintiff re-alleges and incorporates by reference the above paragraphs with the same force and effect as if fully set out in specific detail herein.

118) Plaintiff suffered a loss of liberty, embarrassment, humiliation, pain and suffering, mental and emotional distress, among other injuries and damages.

119) WHEREFORE, Plaintiff seeks such compensatory and punitive damages as a jury may reward, attorneys' fees, and any such other, different, and further relief which this Court

COUNT FOUR - DEPRIVATION OF RIGHTS UNDER COLOR OF LAW

Violation of the First and Fourteenth Amendments – FREEDOM OF SPEECH- pursuant to 42 U.S.C. §1983

Against all named parties

120) The Plaintiff re-alleges and incorporates by reference the above paragraphs with the same force and effect as if fully set out in specific detail herein.

121) Plaintiff suffered a loss of liberty, embarrassment, humiliation, pain and suffering, mental and emotional distress, among other injuries and damages.

122) WHEREFORE, Plaintiff seeks such compensatory and punitive damages as a jury may reward, attorneys' fees, and any such other, different, and further relief which this Court

COUNT FIVE - DENIAL OF DUE PROCESS OF LAW

Violation of the Fifth and Fourteenth Amendment pursuant to 18 U.S.C. § 242

Against all except for Communicare and their listed employees

123) The Plaintiff re-alleges and incorporates by reference the above paragraphs with the same force and effect as if fully set out in specific detail herein.

124) Plaintiff suffered a loss of liberty, embarrassment, humiliation, pain and suffering, mental and emotional distress, among other injuries and damages.

125) WHEREFORE, Plaintiff seeks such compensatory and punitive damages as a jury

may reward, attorneys' fees, and any such other, different, and further relief which this Court finds he is entitled.

COUNT SIX - CONSPIRACY TO DEPRIVE RIGHTS

Violation of the Fourteenth Amendment pursuant to 42 U.S.C. §1985

Against all named parties

126) The Plaintiff re-alleges and incorporates by reference the above paragraphs with the same force and effect as if fully set out in specific detail herein.

127) Plaintiff suffered a loss of liberty, embarrassment, humiliation, pain and suffering, mental and emotional distress, among other injuries and damages.

128) WHEREFORE, Plaintiff seeks such compensatory and punitive damages as a jury may reward, attorneys' fees, and any such other, different, and further relief which this Court finds he is entitled.

COUNT SEVEN - DEPRIVATION OF DUE PROCESS

Violation of the Fourteenth Amendment pursuant to 42 U.S.C. §1983

Against all named parties

129) The Plaintiff re-alleges and incorporates by reference the above paragraphs with the same force and effect as if fully set out in specific detail herein.

130) Plaintiff suffered a loss of liberty, embarrassment, humiliation, pain and suffering, mental and emotional distress, among other injuries and damages.

- 131) WHEREFORE, Plaintiff seeks such compensatory and punitive damages as a jury may reward, attorneys' fees, and any such other, different, and further relief which this Court finds he is entitled.

COUNT EIGHT - NEGLECT TO PREVENT INTERFERENCE WITH CIVIL RIGHTS

Violation of the Fourteenth Amendment pursuant to 42 U.S.C. §1986

Against all named parties

- 132) The Plaintiff re-alleges and incorporates by reference the above paragraphs with the same force and effect as if fully set out in specific detail herein.

- 133) Plaintiff suffered a loss of liberty, embarrassment, humiliation, pain and suffering, mental and emotional distress, among other injuries and damages.

- 134) WHEREFORE, Plaintiff seeks such compensatory and punitive damages as a jury may reward, attorneys' fees, and any such other, different, and further relief which this Court finds he is entitled.

COUNT NINE - FALSE IMPRISONMENT

Violation of the Fourth and Fourteenth Amendments Pursuant to 42 U.S.C. §1983

Against all named parties

- 135) The Plaintiff re-alleges and incorporates by reference the above paragraphs with the same force and effect as if fully set out in specific detail herein.

- 136) Plaintiff suffered a loss of liberty, embarrassment, humiliation, pain and suffering, mental and emotional distress, among other injuries and damages.

- 137) WHEREFORE, Plaintiff seeks such compensatory and punitive damages as a jury may reward, attorneys' fees, and any such other, different, and further relief which this Court finds he is entitled.

COUNT TEN - OVER-DETENTION

Violation of the Fourth and Fourteenth Amendments

Pursuant to 42 U.S.C. §1983

(Against Defendant East)

- 138) The Plaintiff re-alleges and incorporates by reference the above paragraphs with the same force and effect as if fully set out in specific detail herein.

- 139) Plaintiff suffered a loss of liberty, embarrassment, humiliation, pain and suffering, mental and emotional distress, among other injuries and damages.

- 140) WHEREFORE, Plaintiff seeks such compensatory and punitive damages as a jury may reward, attorneys' fees, and any such other, different, and further relief which this Court finds he is entitled.

COUNT ELEVEN - MALICIOUS PROSECUTION

Violation of the Fourth and Fourteenth Amendments pursuant to 42 U.S.C. §1983

- 141) The Plaintiff re-alleges and incorporates by reference the above paragraphs with the same force and effect as if fully set out in specific detail herein.

- 142) Plaintiff suffered a loss of liberty, embarrassment, humiliation, pain and suffering, mental and emotional distress, among other injuries and damages.

- 143) WHEREFORE, Plaintiff seeks such compensatory and punitive damages as a jury may reward, attorneys' fees, and any such other, different, and further relief which this Court finds he is entitled.

COUNT TWELVE - ABUSE OF PROCESS

Mississippi State Law Claim

- 144) The Plaintiff re-alleges and incorporates by reference the above paragraphs with the same force and effect as if fully set out in specific detail herein.

- 145) Plaintiff suffered a loss of liberty, embarrassment, humiliation, pain and suffering, mental and emotional distress, among other injuries and damages.

- 146) WHEREFORE, Plaintiff seeks such compensatory and punitive damages as a jury may reward, attorneys' fees, and any such other, different, and further relief which this Court finds he is entitled.

COUNT THIRTEEN - FALSE IMPRISONMENT

- 147) The Plaintiff re-alleges and incorporates by reference the above paragraphs with the same force and effect as if fully set out in specific detail herein.

- 148) Plaintiff suffered a loss of liberty, embarrassment, humiliation, pain and suffering, mental and emotional distress, among other injuries and damages.

- 149) WHEREFORE, Plaintiff seeks such compensatory and punitive damages as a jury

may reward, attorneys' fees, and any such other, different, and further relief which this Court finds he is entitled.

COUNT FOURTEEN - FALSE ARREST

State Law Claim

150) The Plaintiff re-alleges and incorporates by reference the above paragraphs with the same force and effect as if fully set out in specific detail herein.

151) Plaintiff suffered a loss of liberty, embarrassment, humiliation, pain and suffering, mental and emotional distress, among other injuries and damages.

152) WHEREFORE, Plaintiff seeks such compensatory and punitive damages as a jury may reward, attorneys' fees, and any such other, different, and further relief which this Court finds he is entitled.

COUNT FIFTEEN - FALSE IMPRISONMENT

Mississippi State Law Claim

153) The Plaintiff re-alleges and incorporates by reference the above paragraphs with the same force and effect as if fully set out in specific detail herein.

154) Plaintiff suffered a loss of liberty, embarrassment, humiliation, pain and suffering, mental and emotional distress, among other injuries and damages.

155) WHEREFORE, Plaintiff seeks such compensatory and punitive damages as a jury may reward, attorneys' fees, and any such other, different, and further relief which this Court

finds he is entitled.

**COUNT SIXTEEN - WRONGFUL INTERFERENCE WITH FAMILIAL
RELATIONSHIPS**

Mississippi State Law Claim
(Against All Named Defendants)

156) The Plaintiff re-alleges and incorporates by reference the above paragraphs with the same force and effect as if fully set out in specific detail herein.

157) Plaintiff suffered a loss of liberty, embarrassment, humiliation, pain and suffering, mental and emotional distress, among other injuries and damages.

158) WHEREFORE, Plaintiff seeks such compensatory and punitive damages as a jury may reward, attorneys' fees, and any such other, different, and further relief which this Court finds he is entitled.

COUNT SEVENTEEN - LOSS OF CONSORTIUM

Mississippi State Law Claim
(Against All Named Defendants)

159) The Plaintiff re-alleges and incorporates by reference the above paragraphs with the same force and effect as if fully set out in specific detail herein.

160) Plaintiff suffered a loss of liberty, embarrassment, humiliation, pain and suffering, mental and emotional distress, among other injuries and damages.

161) WHEREFORE, Plaintiff seeks such compensatory and punitive damages as a jury

may reward, attorneys' fees, and any such other, different, and further relief which this Court finds he is entitled.

COUNT EIGHTEEN - TORTUOUS INTERFERENCE INTO BUSINESS

Mississippi State Law Claim
(Against All Named Defendants)

162) The Plaintiff re-alleges and incorporates by reference the above paragraphs with the same force and effect as if fully set out in specific detail herein.

163) Plaintiff suffered a loss of liberty, embarrassment, humiliation, pain and suffering, mental and emotional distress, among other injuries and damages.

164) WHEREFORE, Plaintiff seeks such compensatory and punitive damages as a jury may reward, attorneys' fees, and any such other, different, and further relief which this Court finds he is entitled.

COUNT NINETEEN - DEFAMATION OF CHARACTER

Mississippi State Law Claim
(Against All Named Defendants)

165) The Plaintiff re-alleges and incorporates by reference the above paragraphs with the same force and effect as if fully set out in specific detail herein.

166) Plaintiff suffered a loss of liberty, embarrassment, humiliation, pain and suffering, mental and emotional distress, among other injuries and damages.

167) WHEREFORE, Plaintiff seeks such compensatory and punitive damages as a jury may reward, attorneys' fees, and any such other, different, and further relief which this Court finds he is entitled.

COUNT TWENTY - DEFAMATION OF CHARACTER

Mississippi State Law Claim
(Against All Named Defendants)

168) The Plaintiff re-alleges and incorporates by reference the above paragraphs with the same force and effect as if fully set out in specific detail herein.

169) Plaintiff suffered a loss of liberty, embarrassment, humiliation, pain and suffering, mental and emotional distress, among other injuries and damages.

170) WHEREFORE, Plaintiff seeks such compensatory and punitive damages as a jury may reward, attorneys' fees, and any such other, different, and further relief which this Court finds he is entitled.

COUNT TWENTY-ONE - DEFAMATION OF CHARACTER

Mississippi State Law Claim
(Against All Named Defendants)

171) The Plaintiff re-alleges and incorporates by reference the above paragraphs with the same force and effect as if fully set out in specific detail herein.

172) Plaintiff suffered a loss of liberty, embarrassment, humiliation, pain and suffering, mental and emotional distress, among other injuries and damages.

173) WHEREFORE, Plaintiff seeks such compensatory and punitive damages as a jury may reward, attorneys' fees, and any such other, different, and further relief which this Court finds he is entitled.

COUNT TWENTY-TWO - INTENTIONAL EMOTIONAL DISTRESS

State Claim

Against all named parties

174) The Plaintiff re-alleges and incorporates by reference the above paragraphs with the same force and effect as if fully set out in specific detail herein.

175) Plaintiff suffered a loss of liberty, embarrassment, humiliation, pain and suffering, mental and emotional distress, among other injuries and damages.

176) WHEREFORE, Plaintiff seeks such compensatory and punitive damages as a jury may reward, attorneys' fees, and any such other, different, and further relief which this Court finds he is entitled.

177)

PRAYER FOR INJUNCTION AND RELIEF

178) Based on the legal and factual allegations stated herein, the Plaintiff respectfully prays that this Court will assume jurisdiction of this action and, after a jury trial, provide

relief as follows:

- 179) Render a judgment finding the Defendants jointly and/or severally liable for the aforementioned causes of action and find for the plaintiffs an award of compensatory damages in the amount TWO MILLION FIVE HUNDRED THOUSAND DOLLARS (\$2,500,000) due to the past, present, and future damages incurred along with the long-term effects caused by Defendants actions.
- 180) Render a judgment finding the Defendants jointly and/or severally liable for the aforementioned causes of action and award Plaintiffs Punitive Damages in the amount of TWENTY-FIVE MILLION DOLLARS (\$25,000,000) or an adjusted amount that a jury see fit to serve as punishment for the actions of Defendant's as well as serving a future deterrent to help curb and prevent future unlawful, unconstitutional, and gravely injurious actions detrimental to the Constitution and the Civil Rights of all citizens.
- 181) Render a judgment permanently enjoining Defendants from enforcing their customs, policies, patterns, and practices as described herein that violate constitutional rights.
- 182) Retaining jurisdiction over this action and ordering the Defendants to implement and enforce proper policies and practices including appropriate training and supervision to protect individuals from infringement of their constitutional rights.
- 183) Issue an order requiring the Defendant(s) to pay the Plaintiff nominal,

compensatory, and punitive damages, as applicable;

184) Pursuant to 42 U.S.C. § 1988, issue an order requiring the Defendant to pay for all litigation costs, expenses and reasonable attorney's fees associated with the filing of this action;

185) Grant to the Plaintiff any such and all other, further, different, general or special relief as in equity the Plaintiff may be entitled

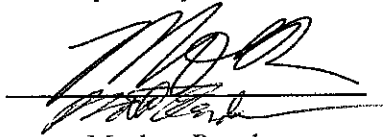
WHEREFORE ALL PREMISES CONSIDERED

Plaintiff prays this court issue an order of protection stipulating conditions that will prevent further injury or harassment by any of the named Defendants into this ongoing legal matter yet to be decided. In addition, plaintiff would ask this court to bind all other matters at hand over to the hands of a jury to hear the facts and decide all merits of this cause of action brought forth.

Plaintiff further sayeth naught

JURY TRIAL DEMANDED

Respectfully Submitted

A handwritten signature in black ink, appearing to read 'Matthew Reardon', is written over a horizontal line.

Matthew Reardon
Plaintiff (Pro Se)

117 CR 401
Oxford, MS 38655
legal@matreardon.com
662-205-6711

PLEASE SERVE THE FOLLOWING BY CERTIFIED MAIL:

Justice Court Records

DO dodonnell@claytonodonnell.com
Fri, 03 Dec 2021 4:32:51 PM -0600

To "Matt Reardon" <matt@ridingwiththeoutlaw.com>

Cc "Jill Carwyle" <JCarwyle@lafayettecoms.com>,

"Lisa Carwyle" <LCarwyle@lafayettecoms.com>, "Joey East" <jeast@lafayettesheriff.net>

Tags 

Security  TLS [Learn more](#)

Matt:

I have been made aware of your unsuccessful efforts today to retrieve a copy of bail bond records in a Justice Court criminal case involving another individual. I am told that you had misspelled the name of the individual and that is why the clerk could not locate the record.

The clerk's office has now found the record and it is available for pick up. For future reference, there is a publicly accessible computer terminal at the Justice Court clerk's office which you can use to search court records. If you want copies of any record, the clerk will charge 15 cents per page which is the default rate under the Public Records Act.

Finally, the clerks report that you have been verbally abusive toward them and that the behavior seems to be increasing in frequency and intensity. There is no need for behavior that disrupts court business and decorum and, if it continues, the judges of the court may pursue their options to address the behavior. I therefore believe that your use of the public computer terminal will work for everyone.

David D. O'Donnell
Clayton O'Donnell PLLC
1403 Van Buren Avenue
Suite 103
Oxford, Ms. 38655
dodonnell@claytonodonnell.com
1(662) 234-0900

L21-494

AFFIDAVIT/DECLARATION OF TRUTH

JOSEPH B EAST, SHERIFF OF LAFAYETTE COUNTY 711 JACKSON AVE E, OXFORD, MS 38655

I, **MATTHEW OLIVER REARDON** the undersigned, make this Affidavit/Declaration of Truth of my own free will, and I hereby affirm, declare and swear, under my oath and under the pains and penalties of perjury under the laws of the United States of America and of this state, that I am of legal age and hereby attest that the statements, averments and information contained in this Affidavit/Declaration are true and correct to the best of my knowledge.

This Affidavit/Declaration of Truth is lawful notification you, and is hereby made and sent to you pursuant to the Federal Constitution, specifically the Bill of Rights, in particular, Amendments I, IV, V, VI, VII, IX, X, XIV; and The Bill of Rights detailed in Article 3 of the Mississippi Constitution specifically sections 11, 12, 13, 14, 17, 23, 24, 25, 26, and 26-A. This Affidavit/Declaration of Truth requires your written rebuttal to me, in kind, specific to each and every point of the subject matter stated herein, within 15 days, via your own sworn and notarized affidavit, using true fact, valid law and evidence supporting your rebuttal of the specific subject matter stated in this Affidavit/Declaration. You are hereby noticed that your failure to respond, as stipulated, and rebut, with particularity and specificity, anything with which you disagree in this Affidavit/Declaration, is your lawful, legal and binding tacit agreement with and admission to the fact that everything in this Affidavit/Declaration is true, correct, legal, lawful, and fully binding upon you in any court in America, without your protest or objection and that of those who represent you.

1. Acts committed by you, **JOSEPH EAST**, acting as **SHERIFF OF LAFAYETTE COUNTY, MS** either supports and upholds the Constitutions, national and state, or oppose and violates them.
2. You have taken an oath to support and uphold the national and state Constitutions and are constitutionally mandated to abide by that oath in the performance of your official duties.

3. You have no constitutional authority, or any other form of valid, lawful authority, to oppose and violate the very documents to which you swore or affirmed your oath and under which you were delegated by the people the limited authority to conduct the duties of your office.
4. The above three positions are true, factual, lawful and constitutionally ordained.
5. Through this Affidavit/Declaration of Truth, you are hereby noticed of your alleged violations of the below mentioned sections of the Mississippi Constitution along with supporting facts to corroborate the claims that are being made

You, Joseph B East, acting as Sheriff, swore an oath to uphold and support the Constitution of the United States of America and the Your State Constitution, and pursuant to your oath, you are required to abide by that oath in the performance of your official duties. You have no Constitutional or other valid authority to defy the Constitutions, to which you owe your limited authority, delegated to you by and through the People, and to which you swore your oath; yet, by your actions against the People you have violated those oaths and engaged in myriad instances of incompetence, negligence, dereliction of duty, malfeasance, sedition, insurrection, treason and criminal, unconstitutional behavior rendering you unfit to hold public office.

However, despite the above-stated factual, lawful positions, your unconstitutional actions, as described throughout this Affidavit/Declaration of Truth, clearly demonstrate how you have violated all of the above lawful positions, the Constitutions, your oath of office, acted against the public good by knowingly and willfully violating the public trust and committing sedition and insurrection. Pursuant to your unlawful and unconstitutional actions, you have invoked the self-executing Sections 3 & 4 of the 14th Amendment to the National Constitution, thereby have lawfully vacated your office and forfeited all benefits thereof, including salary and pension. Please note that, as stated above and below, if you fail to specifically rebut, in kind, any of the charges, claims and positions set forth in this Affidavit/Declaration, then, you tacitly

admit to them, and these admissions will be lawfully used against you. The following paragraphs and others throughout this Affidavit/Declaration describe some of your unlawful, unconstitutional actions, which have harmed myself and others:

Based upon a report created on May 30, 2017, it was stated that on May 24, 2017 Jarrett Bundren, an investigator with Lafayette County Sheriff's Department received via a phone call stating that I, Matthew Reardon, was making threats towards an individual by the name of Todd Lynch. Affiant has effortlessly made the claim that this entire fiasco amounted to a crime alleged that was never truly committed in order to suppress and prevent an outspoken conservative, 2nd amendment activist from speaking at a public forum which he was slotted in advance to speak at on June 6, 2017; the day that just so happened to be election day for Robyn Tannehill. Completely violating the constitutional rights of another by way of a knowingly false charge which led to false imprisonment was not enough for Lafayette County Officials, as they deprived nearly all procedural due process rights which all accused are to be afforded in order to contrive a conviction stemming from intimidation and fear, not facts and evidence. Affiant was held illegally confined in the Lafayette County Detention Center from the time of his arrest, May 26 2017 until he received an initial/bond hearing on May 30 2017. This amounted to nearly 96 hours before movant was brought before a judge, twice the maximum length allowable under the Mississippi Rules of Criminal Procedure which had recently been updated prior to affiant's arrest and incarceration to follow.

MRCP Rule 5.1(b)(3) states if a person is taken into custody, the person shall be taken without unnecessary delay, and in no event later than forty-eight (48) hours after arrest, before a judge who shall proceed with an initial appearance.

- a) If the person arrested is not taken before a judge within forty-eight (48) hours, the person detained shall be released on execution of an appearance bond in the minimum amount set pursuant to Rule 8 and directed to appear at a specified time and place.
- b) Affiant tried to assert his complete innocence through a bill of sale proving not only that it was an impossibility for him to have committed the crime charged, but that in fact no crime was committed. Judge Carolyn Bell cut Affiant off from speaking on two separate occasions to stating he had “the right to remain silent” just prior to setting a completely outrageous appearance bond.
- c) Judge Bell never cared to advise me that I had the right to a Preliminary Hearing. MRCrP 8.1 lists a table recently updated approximately a month prior showing ranges for types of crimes.
- d) A crime receiving a maximum incarceration of 10-years should receive a \$5,000-\$50,000 Appearance Bond. Affiant’s alleged crime received a maximum 5-years incarceration yet was set at \$150,000. **Due to it already going well beyond 48-Hours before affiant was afforded an initial hearing, Judge Bell was obligated to issuing an appearance bond of \$5,000 or releasing affiant on his personal recognizance.**
- e) Affiant makes claims of improper influence being the key factor in what had occurred and that this move had likely been decided upon just prior to the initial hearing commencing

Affiant reasserts his claims of needing to get his daughter out of an ill-brought, fraudulent, and deceptive chancery court matter which just so happened to be coincidentally piled on at the same time to further stack the deck. Upon pleading out following extended mental torture, Lafayette County Officials insisted on a banishment being a stipulation in order to get rid of their problem and source of liability for at least the newly elected mayor’s first term, along

with fully disarming him, and insisting upon the signing of a covenant to not sue Lafayette County and Oxford employees and officials, Sheriff's Department, and The Lynch's. However, exculpatory evidence of innocence existed all along, and that a preliminary hearing was never afforded. Bond was set disproportionately and unconstitutionally high in a clear violation of the 8th Amendment to the Federal Constitution as the bond set at \$150,000 was three times higher than the established guidelines stated even for an alleged crime that could see twice the potential length of incarceration if found guilty. A motion for Habeas Corpus seeking bail reduction was filed June 5, 2017 alleging that Affiant was illegally confined and restrained of liberty in the Lafayette County Detention Center with bail in the amount of \$150,000 and that confinement was illegal because bail was excessive, oppressive and beyond the financial means of Affiant or his family and loved ones. This Habeas Corpus Petition placed Lafayette County on notice of violations of the Eighth and Fourteenth Amendments to the United States Constitution and §§ 26 and 29 of the Mississippi Constitution at that time. At the bare minimum, this motion commanded that the Sheriff produce the affiant and show good cause why he should not be discharged from such illegal confinement immediately or have his bond reduced to a constitutional amount. The Habeas Corpus was approved to proceed in forma pauperis on June 7, 2017. However, the approved petition was never proceeded upon and coincidentally Affiant was never even informed that this petition was filed on his behalf much less approved. Approximately 2 months after plea was entered, A Psychologist in Tupelo, whom was the referring doctor for Lafayette County Chancery Court, notated coercion on his report as the chief reason for such plea. In the following months and years upon the discovery of additional facts and evidence, Lafayette County primarily through its most Sheriff Joseph East has refused to provide equal protections under its laws

and stands accused of continued intentional deprivation of the Affiant's civil rights in a continued insistence on covering its tracks and shifting guilt with the help of malicious prosecution and preferential prosecution through the knowing introduction and use of perjurious testimony in order to contrive another highly immoral, unlawful, and unconstitutional conviction. Through a plethora of discovered evidence that has surfaced, it would more than appear that East has had direct involvement in all that has transpired dating back to May of 2017 while under his prior command and title of Chief of Police for Oxford Police Department. Affiant states he had no prior run in's nor issues with East prior to his return to Oxford in 2020, and that evidence now demonstrates an ill intent and foul play clearly demonstrated by East and directed at affiant unbeknownst at the time to him. **Affiant awaits his guilty plea being declared involuntary due to a complete denial of his procedural due process rights, guaranteed by the United States and State of Mississippi Constitutions. Affiant claims this deprivation of rights due to all accused in combination with the coercion tactics places Lafayette County and its Officials in Direct violation of State and Federal Law, making his plea involuntary and void and a violation of State Law which the State and County should never have been allowed to be in receipt of in the first place.**

That on July 7, 2020 Affiant filed his post-conviction relief in Lafayette County Circuit Court seeking complete reversal of his plea based on stated violations he became aware of. The judge assigned was Judge John Kelly Luther. On July 30, 2020 Circuit Court Judge Kelly Luther **DENIED** affiant's motion for relief which was brought with merit, in good timing, and in the correct court and jurisdiction. Affiant alleges that his post-conviction relief motion was prejudicially denied with biasness and favorability shown to the respondent, as the grounds on which post-conviction relief was brought along with the alleged fraud conducted by the State and

Lafayette County not only warranted but turned highly prejudicial against the affiant when county officials contrived a fraudulent conviction in 2017 and beyond negligent and in fact injurious upon the affiant when Lafayette County Circuit Court refused to hold an evidentiary hearing or look at any fact stated when constitutional rights violations through complete procedural due process rights were alleged amounted to even more deprivation and even what now is alleged as a complete chilling of constitutional rights of all citizens through a complete refusal of the equal protections of the law. Up until 8/12/2020, the assigned judge on the post-conviction relief was Judge Kent Smith. However, Judge John Kelly Luther continued showing an interest in affiant's matters by way of coming in to DENY each motion submitted despite the assignment of the case belonging to Kent Smith. Affiant filed a motion for recusal on 8/12/2020 and upon submission of this motion, the official record was ALTERED to then reflect John Kelly Luther as the assigned judge. This was certainly a rather large cause for concern.

Between July, 2021 and August, 2021, I, Matthew Oliver Reardon, had obtained press credentials, further providing official notice that I was a recognized and credentialed Reporter/Photographer/Journalist as a member in good standing with the Constitution First Amendment Press Association for independent work in journalism and reporting. It was around this time that Lafayette County officials appeared as if their authority had been challenged, however it begins to become clear that a clear abuse of power by Local Government Officials would be the culprit. A simple, basic understanding and knowledge of our Constitutional rights yields the fundamental right to petition the Government for Redress is and always has been inherently vested in, and derived from the people. All government of right originates with the people, is founded upon their will only, and is instituted solely for the good of the whole. Furthermore, the people of this state have the inherent, sole, and exclusive right to regulate the

internal government and police thereof. This is a guaranteed right of all citizens of the state under Article 3 Section 6, yet another basic right requiring no credentials

On 11/4/2021 Affiant went to trial for 9 separate charges placed against him by Lafayette County Sheriff's Department and his ex, Phyllis "Liz" Crowder. 2 of the 9 charges came from a situation resulting in an alleged Disorderly Conduct and Resisting Arrest December 27, 2020 an email was sent to Sheriff East with "Criminal Conspiracy" in the subject like reporting alleged crimes involving the harboring and exploitation of Affiant's firstborn child (LER) which was opened approximately 2-hours later by the Sheriff. An investigation and assistance in stopping it was requested. Yet no response came from Sheriff East and this is the sole reason that brought affiant to the Sheriff's Department seeking assistance of the sheriff due the alleged crimes continuing to be committed. Affiant claims the complaints alleged were ill-brought, retaliatory, and relied upon mob-domination and the knowing use and introduction of perjured testimony by Lafayette County Sheriffs Department; in particular Deputies Dixon and Tidwell; and that both perjurious and defamatory statements were given under oath by the Lafayette County Sheriff Joey East. Affiant attests that a sloppy, inconsistent investigation attributed to three of the nine charges alleged by Deputies Beavers and Williford, and that evidence was never properly preserved by Lafayette County Sheriff's Department for the purposes of trial.

On December 3, 2021 Affiant filed a cover page and motion seeking complete dismissal of conviction rendered and citing well cited and established federal and state law supporting his position that his Due Process Rights had again been violated by the county and that the new convictions must be set aside. On December 6, 2021, Affiant had discovered that the assigned

judge (Kent Smith) had once again been changed in the system to reflect John Kelly Luther. In a non-threatening, non-accusatory way affiant simply tried to get an understanding of where or who could be responsible for this important record supposedly randomly assigned via algorithm changing. Circuit court clerk Jeff Busby got highly defensive and advised Chyna Sinervo to not answer any of affiant's questions, when affiant was simply fulfilling his civil duty in petitioning the government for redress of a major grievance. At this time Busby gets on his cell phone and presumably contacts Sheriff Joey East who within approximately 5-minutes time is captured on video pulling up, getting out of his car, and telling affiant to not go back into circuit court unless he had something to file because he was "disturbing their business". The following day, December 7, 2021 East reported to Communicare employee Rachel Alcorn knowingly false and damning statements in order to get Communicare to seek Judicial Commitment of affiant based on the lies given. The affidavit is approved and signed off by Judge Lawrence Little and immediately after, two deputies go on the hunt to find and take affiant into custody on the newly signed writ. This happens shortly after as Affiant, his wife, and stepdaughter arrive home and is captured on video. Affiant states the Judicial Commitment was fraudulent and stemmed from false information reported by Lafayette County Sheriffs Department and it's Sheriff Joey East in order to cover up a matter of concern which affiant was seeking answers to, and that this particularly filed matter in circuit court is a matter of interest to the Lafayette County Sheriff adding motive behind the highly immoral move involving the communication of lies to Alcorn. This was a dangerous attack on the freedoms and liberties of a private citizen and member of the press during the commission constitutionally protected activity.

Sheriff Joseph B, East, you are alleged to be in violation of your oath of office, the national and state Constitutions, and in clear violation of the following laws/statutes:

- 1) Section 802 of the Patriot Act which clearly defines a domestic terrorist.**

- 2) **Title 4 U.S.C. 101 - Oath by members of legislatures and officers.**
- 3) **Title 18 U.S.C. section 241 - Conspiracy against rights.**
- 4) **Title 18 U.S.C. section 242 - Deprivation of rights under color of law.**
- 5) **Title 18 U.S.C. 1038 - False information and hoaxes.**
- 6) **Title 18 U.S.C. 1001 - statements or entries generally.**
- 7) **Title 18 U.S.C. - 1503 influencing or injuring officer or juror generally.**
- 8) **Title 18 U.S.C. section 1512B - Engages in misleading conduct.**
- 9) **Title 18 U.S.C. section 2071 - concealment, removal, or mutilation generally.**
- 10) **Title 26 U.S.C. section 7214 - offenses by officers and employees of the United States.**
- 11) **Title 42 - U.S.C. section 1983 - Civil rights action for deprivation of rights.**
- 12) **Title 42 U.S.C. section 1985 (3) - conspiracy to interfere with civil rights.**
- 13) **Title 42 U.S.C. 2000a (a). Civil rights act of 1871,**
- 14) **Title 42 U.S.C. section 1986 - Action for neglect to prevent**

Section 802 of the USA PATRIOT Act (Pub. L. No. 107-52) Expanded the definition of terrorism to cover “domestic,” as opposed to international, terrorism. A person engages in domestic terrorism if they do an act “dangerous to human life” that is a violation of the criminal laws of a state or the United States, if the act appears to be intended to: (i) intimidate or coerce a civilian population; (ii) influence the policy of a government by intimidation or coercion;

Lastly, current policing, fining, arrests and harassment throughout Lafayette County, MS is in violation of not only First Amendment “abridging the right of people to peaceably assemble” but more narrowly: **Title 18 U.S.C., Section 242- Deprivation of Rights Under Color of Law: Whoever, under color of any law, statute, ordinance, regulation, or custom, willfully subjects any person in any State, Territory,**

Commonwealth, Possession, or District to the deprivation of any rights, privileges, or immunities secured or protected by the Constitution or laws of the United States, or to different punishments, pains, or penalties, on account of such person being an alien, or by reason of his color, or race, than are prescribed for the punishment of citizens, shall be fined under this title or imprisoned not more than one year, or both; and if bodily injury results from the acts committed in violation of this section or if such acts include the use, attempted use, or threatened use of a dangerous weapon, explosives, or fire, shall be fined under this title or imprisoned not more than ten years, or both; and if death results from the acts committed in violation of this section or if such acts include kidnapping or an attempt to kidnap, aggravated sexual abuse, or an attempt to commit aggravated sexual abuse, or an attempt to kill, shall be fined under this title, or imprisoned for any term of years or for life, or both, or may be sentenced to death.

Due to your unconstitutional actions and draconian measures as described throughout this Affidavit/Declaration, you have invoked the referenced Sections 3 & 4 of the 14th Amendment. As such you have lawfully vacated your office and forfeited all benefits thereof, including salary and pension.

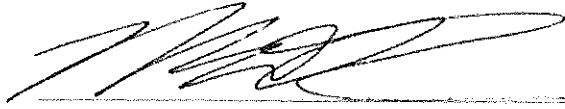
Lawful notification has been provided to you stating that if you do not rebut the statements, charges and averments made in this Affidavit/Declaration, then, you tacitly agree with and admit to them. Pursuant to that lawful notification, if you disagree with anything stated under oath in this Affidavit/Declaration of Truth, then rebut to me that with which you disagree, with particularity, within (15) fifteen days of receipt thereof, by means of your own written, notarized affidavit of truth, based on specific, true, relevant fact and valid law to support your disagreement, attesting to your rebuttal and supportive positions, as valid and lawful, under the pains and penalties of perjury under the laws of the United States of America and the State of Mississippi. An un rebutted affidavit stands as truth and fact before any court. Your failure to respond, as stipulated, is your tacit agreement with and admission to the fact that everything in this Affidavit/Declaration of Truth is true, correct, legal, lawful, and is your irrevocable admission attesting to

this, fully binding upon you in any court of law in America, without your protest, objection and that of those who represent you.

This Affidavit stands as notice of Pending Litigation and as such will be forwarded to the Office of the Attorney General to provide such notice of intent. This Affidavit and your response or lack thereof will accompany the Federal complaint which will be filed 15-Days from today

Affiant further sayeth naught

All Rights Reserved,



1-3-2021

Matthew Oliver Reardon, Affiant/Declarant

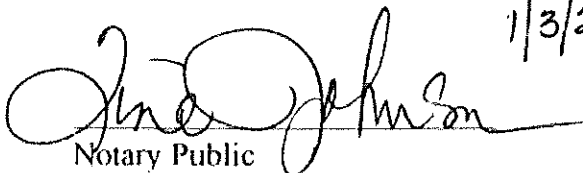
Date

NOTARY STATEMENT

In the State of Mississippi,

County of Lafayette

I swear that on this 3rd day of January, 2022 the above-named Affiant/Declarant, **Matthew Oliver Reardon**, personally appeared before me, and of his own free will, signed and executed this Affidavit/Declaration of Truth.



Notary Public

My Commission Expires:

1/3/2022



Seal:

PROOF OF SERVICE

Case: L21-494	Court: LAFAYETTE COUNTY CIRCUIT COURT	County: LAFAYETTE	
Plaintiff / Petitioner: MATTHEW REARDON		Defendant / Respondent: STATE OF MISSISSIPPI	
Received by: LAFAYETTE COUNTY BOARD ATTORNEY DAVID O'DONNELL		For: AFFIDAVIT OF TRUTH FOR IMMEDIATE SERVICE TO SHERIFF EAST	
To be served upon: SHERIFF JOEY EAST			

LAFAYETTE COUNTY BOARD OF SUPERVISORS

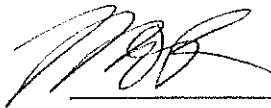
I, Matthew Reardon, served the AFFIDAVIT OF TRUTH FOR IMMEDIATE SERVICE TO SHERIFF EAST upon the person named above in the manner set forth below:

PERSONAL SERVICE. I personally delivered copies to Lafayette County Board Attorney David O'Donnell on January 4, 2022 in person and confirmed via electronic communication filed with this proof of service, where I found said authorized individual in Lafayette County, MS

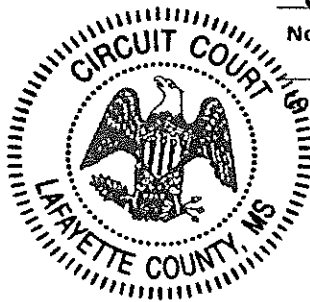
Address where served: 300 North Lamar, Oxford, MS 38655

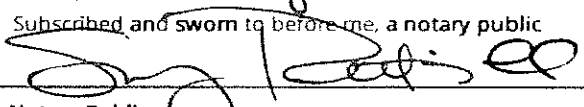
Personally appeared before me the undersigned authority in and for the state of County aforesaid, the within named Matthew Reardon who being first by me duly sworn states on oath that the matters and facts set forth in the foregoing "Proof of Service" are true and correct as therein stated.

Adopted effective March 1, 1985; amended effective May 2, 1985, amended March 17th 1995.

 4/1/22
Date

Matt Reardon



State of Mississippi
County of Lafayette
Subscribed and sworn to before me, a notary public

Notary Public
My Commission Expires Jan. 2, 2024
Commission Expires

LAFAYETTE COUNTY
FILED

APR 01 2022

JEFF BUSBY
CIRCUIT CLERK

BY:  D.C.

Service of Affidavit/Declaration to East



Matt Reardon <matt@mattreardon.com>

📧 Tue, 04 Jan 2022 3:14:43 PM -0600

To "Dodonnell" <dodonnell@claytonodonnell.com>

Cc "Jeast" <jeast@lafayettecoms.com>

Tags 🏷

1 Attachment

Affidavit-Declaration-of-Truth-Reardon-to-East-filed-copy.pdf

Mr O'Donnell,

Would you kindly accept formal service of this affidavit which I gave you a copy of last night, and tender it over to Sheriff?

If Sheriff East is willing to take direct receipt of it electronically through acknowledgement, that will also work.

I don't believe that I should have to incur any additional burdens and costs simply in making sure that the Sheriff, an elected Government Official, is properly provided this document which is time sensitive in order for him to provide any response he wishes

All My Best,

Matt Reardon
Founder of Outlawed Productions
Producer & Creator of *Riding With The Outlaw*
662-550-9752

A MUST READ!! READ MY STORY HERE > <https://ridingwiththeoutlaw.com/my-story/>

See the latest court filings, articles, evidence and video releases
at [RIDINGWITHTHEOUTLAW.COM](https://ridingwiththeoutlaw.com)
"When Freedom is Outlawed, Only The Outlaws Will Be Free"

RE: Service of Affidavit/Declaration to East



Matt Reardon <matt@mattreardon.com>

Tue, 04 Jan 2022 3:29:04 PM -0600

To "David O'Donnell" <dodonnell@claytonodonnell.com>

Tags

Thank you sir.

Please let me know if you and/or the County Board of Supervisors wishes to discuss, address, and potentially resolve any of the claims that are made over the following 2-weeks time, virtual or in person, prior to me proceeding forward on the alleged complaints.

All My Best,

Matt Reardon

Founder of Outlawed Productions

Producer & Creator of Riding With The Outlaw

662-550-9752

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**See the latest court filings, articles, evidence and video releases
at [RIDINGWITHTHEOUTLAW.COM](https://ridingwiththeoutlaw.com)**

"When Freedom is Outlawed, Only The Outlaws Will Be Free"

---- On Tue, 04 Jan 2022 15:19:55 -0600 **David O'Donnell**
<dodonnell@claytonodonnell.com> wrote ----



Matt:

I acknowledge my receipt of the affidavit immediately following yesterday afternoon's Board of Supervisor's meeting. I will provide a copy to Sheriff East.

David D. O'Donnell

Clayton O'Donnell PLLC

1403 Van Buren Avenue

Suite 103

Oxford, Ms. 38655

dodonnell@claytonodonnell.com

1(662) 234-0900

No Response



Matt Reardon <matt@mattreardon.com>

Wed, 19 Jan 2022 10:32:41 AM -0600

To "Dodonnell" <dodonnell@claytonodonnell.com>

Tags

David,

Would I be correct in my assumption that the Sheriff chose not to rebut or give any response to the Affidavit filed on 1/3/22?

I would like to direct your attention to a particular Supreme Court case which I believe is going to be a highly relied upon case regarding everything that transpired in December and Lafayette County's continued well documented deprivation of significant procedural and substantive due process rights which when combined with all other Civil/Constitutional rights violations that have occurred create one of the darkest of clouds which currently hangs over Lafayette County.

The case in particular was a landmark decision of the US Supreme Court in mental health law ruling that a state cannot constitutionally confine a non-dangerous individual who is capable of surviving safely in freedom by themselves or with the help of willing and responsible family members or friends.

O'Connor v. Donaldson, 422 US 563

As I'm sure you are aware of, it was lies and obstruction tactics tendered to an employee of Communicare by the Sheriff in response to my finding the assigned Judge mysteriously changed on my current case which appeals the rulings in Justice Court. I am also sure you are aware of the interest Sheriff East has in this case being that he and his deputies gave sworn testimony in open court which turned out to be perjured and to also include defamatory statements made by the Sheriff himself. In light of the county being in receipt of press credentials I maintain on multiple occasions now, this move adds a quite interesting and unique twist to everything in that it wasn't only a private citizen whom had his rights viciously attacked by a county government, but a member of the press in order to prevent the discovery and reporting of pertinent information regarding my own filed legal matter. **I AM CONFIDENT THAT THESE MAJOR INTENTIONALLY ACTED UPON OCCURRENCES REMOVE ANY CLAIMS OF IMMUNITY ON THE CLAIMS ASSOCIATED**

Also, given the events that have transpired and continue on to this day along with the rights that have been affected, no state court could possibly provide proper relief needed. Not to mention there is substantial legislation overhaul badly needed in Mississippi, in particular it's mental health laws and the completely immoral exploitation of them by officials and employees of the local Governments within. This is something in particular I take a key interest in and if need be will take all the way to the Supreme Court although I feel like there is enough supportive case law supporting it which makes it not necessary.

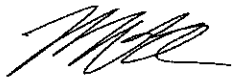
the error from which these petitioners suffered was a denial of rights guaranteed against invasion by the Fifth and Fourteenth Amendments, rights rooted in the Bill of Rights, offered and championed in the

***Congress by James Madison, who told the Congress that the
"independent" federal courts would be the "guardians of those rights."
Chapman v. California, 386 U.S. 18, 21***

PLEASE TAKE NOTICE:

**IF THE COUNTY WISHES TO DISCUSS POSSIBLE SETTLEMENT ON THESE MAJOR
ISSUES AT HAND, RIGHT NOW IS THE TIME FOR THOSE DISCUSSIONS TO TAKE
PLACE. ONCE LITIGATION ON THESE ISSUES COMMENCES, FULL DISCLOSURE ON
ALL PERTAINING ISSUES WILL OCCUR AND I WILL BE SEEKING PRESENTATION
OF ALL FACTS AND INFORMATION TO A JURY PANEL IN SEEKING AN AWARD IN
DAMAGES BOTH COMPENSATORY AND PUNITIVE**

All My Best,



**Matt Reardon
Founder of Outlawed Productions
Producer & Creator of *Riding With The Outlaw*
662-550-9752**

A MUST READ!! READ MY STORY HERE > <https://ridingwiththeoutlaw.com/my-story/>

**See the latest court filings, articles, evidence and video releases
at [RIDINGWITHTHEOUTLAW.COM](https://ridingwiththeoutlaw.com)
*"When Freedom is Outlawed, Only The Outlaws Will Be Free"***

Read: No Response

DO

dodonnell@claytonodonnell.com

Wed, 19 Jan 2022 10:55:31 AM -0600

To "Matt Reardon" <matt@mattreardon.com>

Tags 

Security  TLS [Learn more](#)

Your message

To: David O'Donnell

Subject: No Response

Sent: Wednesday, January 19, 2022 10:32:40 AM (UTC-06:00) Central Time (US & Canada)

was read on Wednesday, January 19, 2022 10:55:25 AM (UTC-06:00) Central Time (US & Canada).

Final-recipient: RFC822; dodonnell@claytonodonnell.com

Disposition: automatic-action/MDN-sent-automatically; displayed

X-MSEch-Correlation-Key: zIAWsDiy1UOcoLGoTeDqJw==

Original-Message-ID:

<17e732ee62e.e8882651565365.6540107081093076981@mattreardon.com>

X-Display-Name: David O'Donnell



February 7th, 2022

Via Email Only

Dr Sandy Rogers
Executive Director of
Communicare 152 MS-7
Oxford, MS 38655

CC: Chancellor Lawrence Little
Presiding Judge over Involuntary Commitment
Lafayette County Chancery Court

RE: Fraudulent Involuntary Judicial Commitment Stemming from False Information

URGENT NOTICE PROVIDED. PLEASE TAKE APPROPRIATE ACTION

Dear Dr Rogers,

Between the date of December 6, 2021 and December 7, 2021 an employee of Communicare by the name of Rachel Alcorn came in receipt of inaccurate, untrue, and defamatory information given to her by Lafayette County Sheriff's Department which she acknowledged had been sourced by the Lafayette County Sheriff, Joey East himself. This in turn set off a series of events to follow, which in turn brought about irreparable injury while hindering the due course of justice and as a result broadened the scope of all which currently transpires. In the interest of transparency into all of this, I'd like to make it known that this entire fiasco was created based upon the fact that for the second time in approximately one year's time, I had discovered an important record that was fraudulently altered in Lafayette County Circuit Court. Finding out how this record could have changed and who could be responsible for changing it was and still is two very important questions to me as the same thing has happened now on both currently open filed matters of mine in Lafayette County Circuit Court. To make matters even worse, I have Identified numerous pieces of inaccurate information reported by another employee of Communicare by the name of Stacey Waites whom conducted the intake at the Lafayette County Detention Center on December 8th, 2021. Then there is the absolutely bizarre notation and reasoning by the Doctor and Nurse Practitioner via remote video conference which when combined with the facts and all other erroneous and obnoxious matters at hand lead me to believing that everything that transpired was the result of heavily politicized persecution for me having the drive and focus that I have on all current ongoing legal matters I am involved in. Particularly when this Doctor notated on his report that I was "very preoccupied with ongoing legal cases" and described my condition as

SCANNED

Bipolar with “delusions” in his report recommending in-patient commitment. To fault me for being pre-occupied with ongoing legal cases is absolutely ludicrous when factoring in that I am having to perform the work of an attorney due to not being able to afford the monumental costs an attorney would charge to represent me in two supreme court appeals, two circuit court matters, a chancery court matter, a recently wrapped up Justice Court matter, and at a bare minimum now one pending District Court Matter. Being “pre-occupied with ongoing legal cases” should be fully expected of anyone currently engaged in multiple legal battles in multiple venues such as I am, particularly when that individual happens to be representing himself in seeking full vindication from a complete miscarriage of justice that transpired in 2017 which continues to be exacerbated through continued lies tendered by Lafayette County Officials and in particular Sheriff East whom in fact played a hand in all that has occurred dating back to May of 2017. Contrary to the opinion of this Doctor and your staff whom never fact checked anything, the claims I have made and produced a plethora of evidence supporting are not "Conspiracy Theories" or "Delusions", nor have I ever "Provoked anyone with my minor child" as the affidavit and reports following attested to. These are insinuations and character assassinations that Lafayette County and in particular its sheriff wanted to have conveyed which at least temporarily it was successful in doing through full exploitation of the State of Mississippi's mental health laws and through the assistance of your employees and contractors working on behalf of your organization at the expense of my rights and liberties. The negligent acts of your employees have sought to demonize lawful, authorized, and constitutionally protected activity through the pushing of a narrative that was distasteful and untrue.

I am an independent credentialed member of the press whom has taken on a role of investigating and reporting the corrupt acts demonstrated by this county while fully documenting my journey in seeking full vindication and my credentials have been on file with the County and Sheriffs Department, so this was no new occurrence or surprise. For your convenience I am attaching a copy to this letter so that they again are on file in one more place in this county. The most unfortunate consequence, however, is that employees of Communicare through not properly following policy and procedure as it relates to state and federal law have now directly aided and provided assistance to certain Lafayette County Officials and in particular Sheriff East in their attempt to “cover up” and abscond from their wrongful deeds. As a result of such I have lost all trust in your organization and its staff, and honestly who could blame me?

The State of Mississippi's Mental Health laws are outdated and I firmly believe that what has transpired here demonstrates the level of ease for the State and County Governments to exploit their own system, and through doing so have done a pristine job of exposing its major flaws. The process

for initiating Civil Commitment proceedings is detailed out in MS Code 41-21-65. In that it states:

If any person is alleged to be in need of treatment, any relative of the person, or any interested person, may make affidavit of that fact and shall file the Uniform Civil Commitment Affidavit with the clerk of the chancery court of the county in which the person alleged to be in need of treatment resides, but the chancellor or duly appointed special master may, in his or her discretion, hear the matter in the county in which the person may be found. The affidavit shall set forth the name and address of the proposed patient's nearest relatives and whether the proposed patient resides or has visitation rights with any minor children, if known, and the reasons for the affidavit. The affidavit must contain factual descriptions of the proposed patient's recent behavior, including a description of the behavior, where it occurred, and over what period of time it occurred, if known. Each factual allegation may be supported by observations of witnesses named in the affidavit.

The requirements in this simply were not met, nor were they ever justified. Not only was the Affidavit not supported by any named witnesses, but the entire procedure was botched by the affiant attesting under sworn affidavit to non-factual claims along with claims that were in fact constitutionally protected and ordained particularly for an independent credentialed member of the press in the performance of his duties, which the Lafayette County through its officials nor employees of Communicare had any such right to interfere with and hinder. Further, the affidavit and reports to follow were comprised of judgmental and conclusory statements that were untrue in nature and relied primarily upon information stemming from an outside party whom was never named as required under the above statute. Fortunately, in one measure of good faith, there is a listed imposition of penalties against false affidavits being filed in bad faith for a malicious purpose in that:

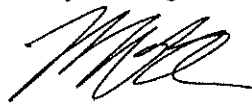
The prohibition against charging the affiant other fees, expenses, or costs shall not preclude the imposition of monetary criminal penalties under Section 41-21-107 or any other criminal statute, or the imposition by the chancellor of monetary penalties for contempt if the affiant is found to have filed an intentionally false affidavit or filed the affidavit in bad faith for a malicious purpose.

A State Law cannot be held constitutional if it directly infringes on established law on a Federal Level to include if that particular law/legislation deprives a citizen of any constitutional right or any guaranteed Due Process Right – to include Substantive in that a citizen is subjected to the undue deprivation of life, liberty, or property. A finding of "mental illness" alone cannot justify a State's locking a person up against his will and keeping him indefinitely in simple custodial confinement.

Assuming that that term can be given a reasonably precise content and that the "mentally ill" can be identified with reasonable accuracy, there is still no constitutional basis for confining such persons involuntarily if they are dangerous to no one and can live safely in freedom. The matter at hand was decided upon in *Davidson vs O'Connor*, a Landmark US Supreme Court case, which Stated in short, a State cannot constitutionally confine without more a non-dangerous individual who is capable of surviving safely in freedom by himself or with the help of willing and responsible family members or friends. The question was then posed, may the State fence in the harmless mentally ill solely to save its citizens from exposure to those whose ways are different? One might as well ask if the State, to avoid public unease, could incarcerate all who are physically unattractive or socially eccentric. Mere public intolerance or animosity cannot constitutionally justify the deprivation of a person's physical liberty. See, e. g., *Cohen v. California*, 403 U.S. 15, 24 -26; *Coates v. City of Cincinnati*, 402 U.S. 611, 615; *Street v. New York*, 394 U.S. 576, 592; cf. *U.S. Dept. of Agriculture v. Moreno*, 413 U.S. 528, 534.

In conclusion, the flaws which occurred in this matter have not only violated the mental health laws established by the state of Mississippi, but have created a material breach of substantive due process rights guaranteed to all citizens and protected under federal law. As such, you are hereby requested to review and revise your current policies within the following 7 days in order to bring them into compliance with not only state law but federal law as well in order to circumvent a similar matter from occurring in the future and to provide in writing any offered changes to such policies. In addition, as stated above, please take appropriate action to produce and preserve any and all information associated with the incident below to include any information describing the incident below that is maintained by Communicare and/or any of its employees to include any individual subcontracted out. This preservation should include all audio recordings taken during intake. any documentation/notes taken, and any communication regarding the matter sent and/or received leading up to and including the final determination being made to involuntarily commit Matthew Reardon to a state hospital facility on December 9, 2021.

My Best Regards,



Matthew Reardon

mat@matfreardon.com

662-550-9752

Video Documenting all that occurred on December 6, 2021 along with supporting evidence may be viewed online at:

RIDINGWITHTHROUTLAW.COM/A-FRAUDULENT-COMMITMENT

PRESS ID

Carte de Presse / Pase de Prensa / Presseausweis

Credentialed Reporter / Photographer

Matthew Reardon

**Is a Reporter / Photographer and a
member in good standing with the
Constitution First Amendment
Press Association (CFAPA.org)**



Issue Date:

July 01, 2021

Do not hinder, exclude, or block the view of this journalist in the exercise of the long-established and court-recognized 1st Amendment right to be present at and to photograph or film any event in any public place. See: Perry Education Association v. Perry Local Educators' Association. (1983)

1st Amendment: "Congress shall make no law respecting an establishment of religion, or prohibiting the free exercise thereof; or abridging the freedom of speech, or of the press; or the right of the people peaceably to assemble, and to petition the Government for a redress of grievances." (Enacted by Congress on December 15, 1791.)

Any officer or public official who deprives another of their 1st Amendment rights is personally and departmentally subject to suit for civil damages for deprivation of rights. Per 42 U.S.C. § 1983, "every person" who under color of law deprives another person of his civil rights is liable for civil damages.) See: Pierson v. Ray, 386 U.S. 547 (1967) – a U.S. Supreme Court case. Also see: Monell v. Department of Social Services, wherein the U.S. Supreme Court held that municipalities and local governments can be sued if the action was attributable to an official policy.

Law enforcement officers, public officials, and public employees do not enjoy absolute immunity.

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IN THE CHANCERY COURT OF Lafayette COUNTY, MISSISSIPPI
 18th JUDGE
 IN RE: Matthew Beardon CAUSE NO. 2021-691 (L)
 2021 DEC - 7 P M 10

UNIFORM COMMITMENT AFFIDAVIT UNDER MCA SECTION 41-21-65

COMES NOW Rachel Alcorn, relative and/or interested person, residing atCommunicareBY telephone number 662-234-7521, daily sworn

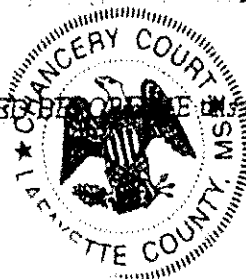
and deposed, says the following to be true and correct to the best of my knowledge and belief:

Matthew Beardon is a person I allege to be in need of treatment by outpatient or inpatient commitment. To my knowledge this person DOES / DOES NOT (circle one) reside or have visitation rights with a minor child or children. Their nearest relative, if known, is _____ who resides at _____, telephone number _____. I allege the person to be in need of treatment because the person is mentally ill under law and poses a likelihood of physical harm to themselves or others as demonstrated by (mark as many as may apply) ☒ a recent attempt or threat to physically harm themselves or others and/or ☒ a failure and inability to provide necessary food, clothing, shelter, safety, or (medical care) to themselves as a result of the impairment and/or _____ based on treatment history or other relevant evidence, this person is in need of treatment to prevent further disability or deterioration which will predictably result in dangerousness to themselves or others when their current mental illness limits or negates their ability to make an informed decision to seek or comply with recommended treatment. To my knowledge the recent behavior described herein is not caused by any of the following: epilepsy; intellectual disability; brief periods of intoxication, dependence upon or addiction to alcohol or drugs; or senile dementia.

Factual descriptions of recent behavior, witnesses, and where and when it occurred, if known:

go into public places recording people paranoid and delusional
prodding people with his minor child, not taking meds
and not getting medical help (attach additional pages if needed)

I HAVE / HAVE NOT (circle one) consulted with a Community Mental Health Center or a physician to determine whether the alleged acts by the proposed respondent warrant civil commitment in lieu of other less-restrictive treatment options.

SWORN TO AND SIGNED BY MY HAND this the 7th day of December 2021 A.D.Rachel Alcorn
AFFIANT (relative and/or interested person)SWORN TO AND SUBSCRIBED BEFORE ME this the 7th day of December 2021 A.D.Jina Johnson
NOTARY PUBLIC

CV2021-691(L)

FILED CERTIFICATE OF EXAMINING PHYSICIAN/PSYCHOLOGIST

STATE OF MISSISSIPPI

We, Dr. Milton Hobbs and Sharon Upton, RN do hereby

On the 3rd day of December, 2021, we conducted a

thorough mental and physical examination of Matthew Reardon of
Lafayette County, Mississippi, and that it is our opinion that said person (is) (is not)

suffering from mental illness, more particularly described as Bipolar & delusional
manifested by:

☒ grossly disturbed behavior/faulty perceptions, and poses a substantial likelihood of
physical harm:

☒ by recent threats or attempts to harm self or others.

☒ by failure to provide necessary care for self.

- and -

☒ requires treatment to prevent further disability or deterioration.

Said person (is) (is not) in need of observation, diagnosis, and treatment through:

☒ Inpatient Treatment/Hospitalization ☐ Court Ordered Outpatient Services at Communicare

Facts supporting these findings include: Mr. Matthew Reardon is a 34 year
old male with a history of mental illness requiring inpatient treatment.
HE WAS AT THE North MS State Hospital 7/2021 & he quit taking
his psychiatric medications at the time of discharge. He repeats
himself frequently. He is very preoccupied with ongoing legal
cases. Inpatient treatment is recommended at this time.

So certified this 8 of December, 2021.

M. Hobbs, MD

Physician/Psychologist Signature

Sharon Upton, RN

Physician/Psychologist Signature

APR 07 2022

APR 07 2011
UNITED STATES DISTRICT COURT
NORTHERN DISTRICT OF MISSISSIPPI
FOR

MATTHEW OLIVER REARDON

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Plaintiff

matt@mattreardon.com